

Mahesh Kumar Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 13 June 2017 · WRIT - C No. 26903 of 2017 · **Writ dismissed; petitioner relegated to Clause 6.5 objections.**

HEADNOTE

A writ petition disputing an electricity demand bill is not entertained where the consumer has a statutory remedy of filing objections under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The petition was dismissed with liberty to avail that remedy.

FACTUAL SUMMARY

Mahesh Kumar Singh filed a writ petition in the Allahabad High Court challenging a demand raised by bill dated 25 March 2017. Counsel for the State and for the distribution-licensee respondents (respondent Nos. 2 and 3) submitted that the petitioner had a statutory remedy of filing objections under Clause 6.5 of the Electricity Supply Code, 2005. After hearing both sides, the Division Bench declined to entertain the petition.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objections as alternate remedy

HOLDING

A writ petition disputing a demand bill is not entertained when the consumer has a statutory remedy of filing objections under Clause 6.5 of the Electricity Supply Code, 2005; the petition is dismissed with liberty to avail that remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND RAISED BY BILL DATED 25.03.2017

Merits of the bill were not examined; petitioner was left to Clause 6.5 objections. ¶ 1